

****September 17, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in August 2024 regarding the operator Constanța South Container Terminal SRL and found a violation of the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the General Data Protection Regulation.

As such, Constanța South Container Terminal SRL was sanctioned with a fine of 14,929.50 lei (equivalent to 3,000 EURO).

The investigation was initiated following a notification of a data security breach, based on the provisions of Article 33 of the General Data Protection Regulation, which was submitted by the operator.

The data security breach consisted of unauthorized access by a third party to the personal data (namely, full name, date of birth, addresses, home phone numbers, and personal emails) of its employees in Romania (data subjects) that were on a file management platform used by the operator and which was publicly available on the internet, without having implemented appropriate security measures.

From the checks carried out, it was found that the operator had not implemented adequate technical and organizational measures to ensure a level of security appropriate to the risk of processing, including the ability to ensure confidentiality, although the operator had the obligation to continuously ensure the security of personal data processing for its employees, in accordance with the provisions of Article 32 of the General Data Protection Regulation.

At the same time, the operator was also subjected to the corrective measure of reviewing and updating the technical and organizational measures implemented regarding the security of personal data processed through the IT infrastructure used, especially those concerning external connections to the data servers.

****Legal and Communication Department****

****N.A.S.P.D.C.P****